

Theory to Dataset

Regulatory intermediation in EU green transition law

Main works, concepts, and operational decisions used to understand the field, select cases, identify R-I-T relations, and code regulatory mechanisms.

The analytical shift

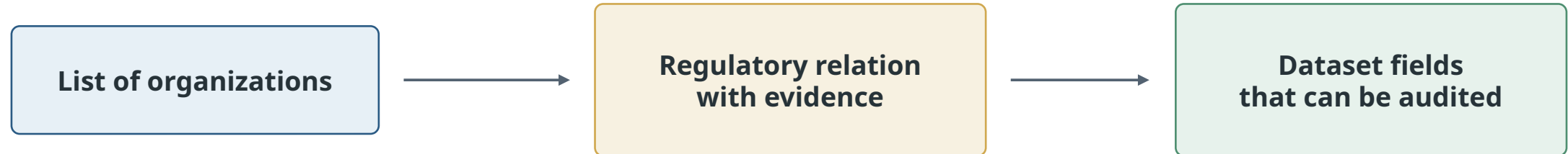
From finding “actors” to reconstructing regulatory architecture

STARTING POINT

The project does not ask simply “who is the regulator?” or “where does the word auditor appear?” It reconstructs how regulatory authority is organized across actors, functions, mechanisms and targets.

CORE MOVE

A positive case must be supported by textual evidence of a regulatory relation: who acts, toward whom, through which intermediary or mechanism, and with what regulatory function.



Operational maxim: keyword hit $\neq$ regulatory relationship.

Historical line of the theory

How the literature moved from regulatory state to regulatory intermediation



The dataset is built at the end of this chain. It does not treat EU law as a bag of words, but as a governance design containing relations, roles, functions and instruments.

Main works and their operational contribution

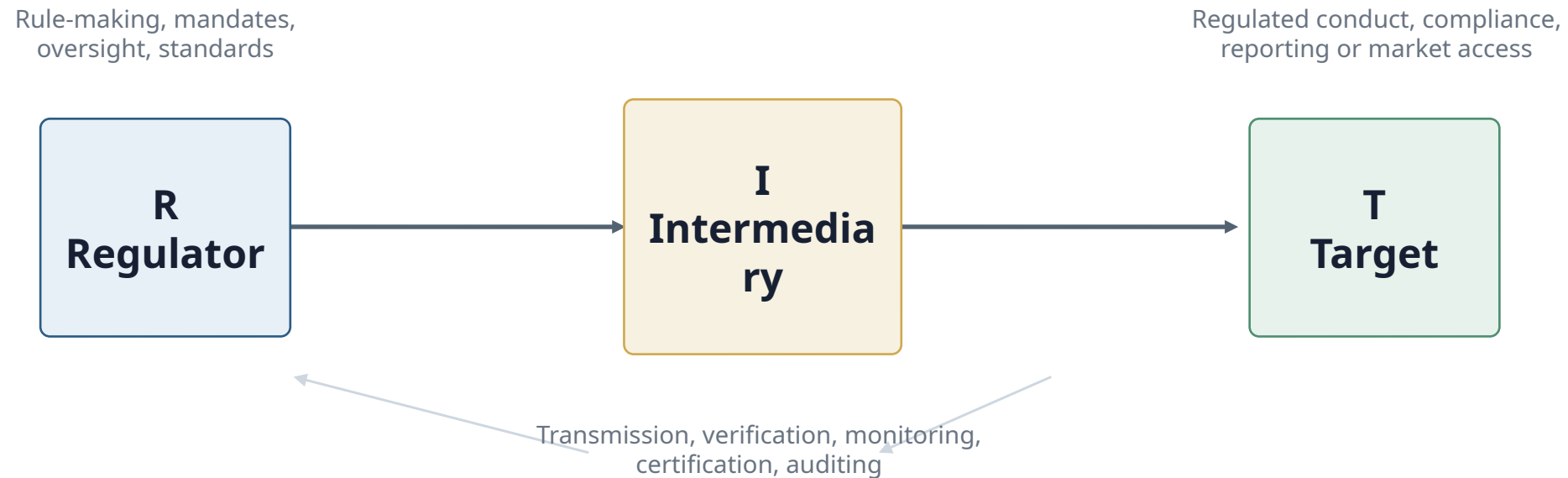
The literature was translated into coding rules, not merely cited

Work / strand	Core concept	Coding consequence	Use in this project
Majone; Levi-Faur	Regulatory state / capitalism	Look beyond agencies	Green-transition law as regulatory governance
Levi-Faur & Starobin	Three-way interactions	Triadic policy relations	Bridge from dyads to R-I-T
Abbott, Levi-Faur & Snidal	R-I-T model	Roles are relational	Unit = evidence-based relation
Enriching RIT	Chains and networks	Actors can shift roles	Avoid fixed actor labels
Levi-Faur proposal	Actors + mechanisms + strategies	Mechanism coding	Reporting, certification, auditing, rating
Medzini & Levi-Faur	Monitoring vs assurance	Separate visibility from credible conformity	Distinguish information from attestation

Theoretical reading produced decision rules: population first, relational coding second, mechanism classification third.

The R-I-T architecture

The central model used to interpret regulatory relations



OPERATIONAL LESSON

The role is not an actor attribute. The same body can be a regulator in one relation, an intermediary in another, and a target in another. The dataset therefore records actor-in-relation, not just actor names.

Operational definitions

How concepts became observable coding categories

Regulator

Actor that creates, mandates, authorizes, evaluates, supervises or enforces a regulatory function.

Intermediary

Actor positioned between regulator and target, or facing the regulator on behalf of a regulatory architecture, performing a regulatory function.

Target

Actor whose conduct, reporting, compliance, market access or institutional performance is affected by the rule.

Relation

An evidence-based regulatory episode linking R, I and T - or R and T in direct relations.

Mechanism

The mode through which the regulatory function operates: reporting, certification, verification, auditing, monitoring, rating/ranking, coordination, advice, enforcement support.

Evidence

Specific textual basis: article, paragraph, recital if used as context, actor, action, object and legal effect.

Case selection logic

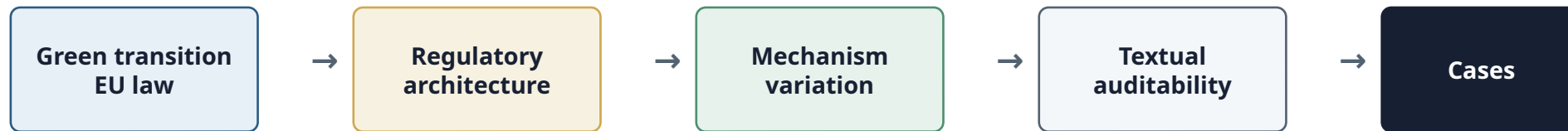
The population must not be defined by the prior presence of intermediaries

AVOIDED BIAS

Selecting only acts with words such as “auditor”, “verifier” or “certifier” would make the conclusion tautological: the sampling frame would already contain the dependent phenomenon.

SELECTION RULE

Cases were chosen as EU green-transition regulatory instruments with distinct governance designs, stable CELEX identifiers, and likely variation in regulatory mechanisms.



Selection first; coding second. Strings locate candidates, but they do not define the universe.

Selected cases and theoretical expectations

Three EU acts, three governance problems, different mechanisms

CASE 01

Regulation (EU) 2021/1119

European Climate Law

Framework governance; targets, trajectories, scientific advice, progress assessment.

Expected mechanisms: scientific advice, reporting, assessment, coordination.

CASE 02

Regulation (EU) 2023/956

Carbon Border Adjustment Mechanism - CBAM

Market-facing compliance architecture for imported goods and embedded emissions.

Expected mechanisms: reporting, verification, certification, customs/compliance.

CASE 03

Regulation (EU) 2023/1115

Deforestation-Free Products

Supply-chain due diligence, traceability and supervision across operators and traders.

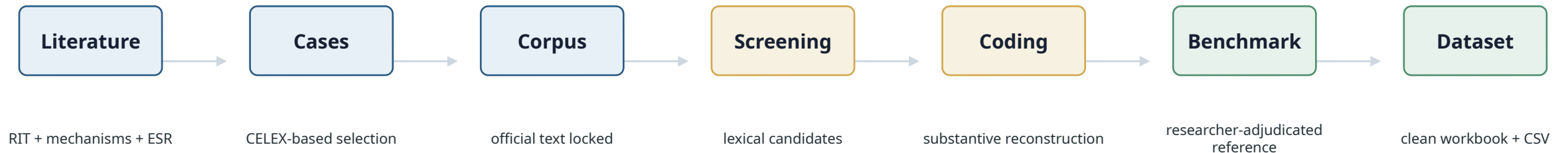
Expected mechanisms: due diligence, risk assessment, reporting, competent authority oversight.

From theory to dataset

Operational pipeline used to transform normative text into analyzable data

CONTROL PRINCIPLE

Each stage has a different epistemic role. Screening increases recall; coding establishes meaning; adjudication freezes the reference benchmark; the final dataset removes internal notes and preserves only auditable variables.



HUMAN GATE

The researcher does not recode the entire act. The gate focuses on divergences, low-confidence cases, conceptually important relations, and a small audit sample of agreements.

Identification test for regulatory relations

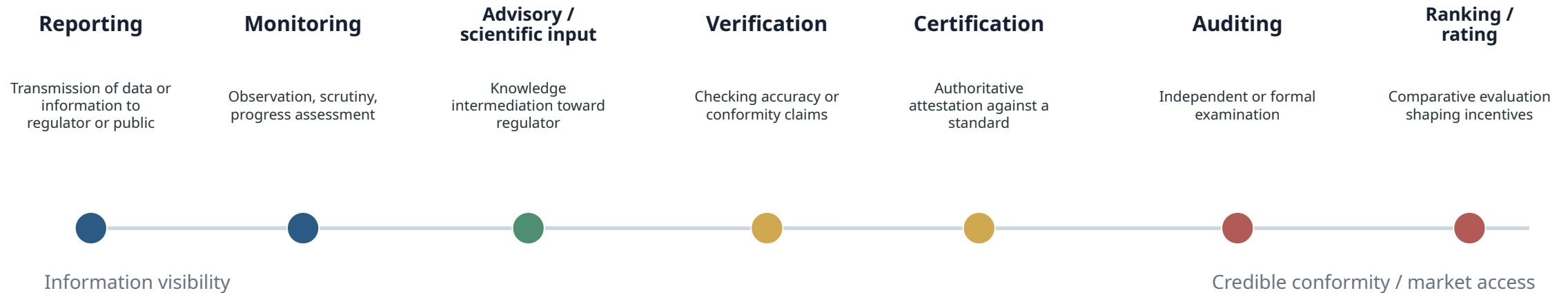
A relation is coded only when the evidence passes the substantive threshold

- 1 Actor test** Can we identify at least the relevant institutional actor(s)?
- 2 Function test** Is the actor performing a regulatory function, not merely mentioned?
- 3 Direction test** Is the relation $R \rightarrow I \rightarrow T$, $I \rightarrow R$, or direct $R \rightarrow T$?
- 4 Mechanism test** What is the mode: report, certify, verify, audit, monitor, coordinate, advise?
- 5 Evidence test** Is there article-level textual support for action, object and legal effect?

Ambiguous cases were not “rounded up”. Uncertain or unsupported relations remain uncertain or are excluded.

Mechanisms of regulatory intermediation

How the mode of intermediation was classified



CODING RULE

Mechanism is not inferred from a single noun. It is assigned from the actor, action, object and legal effect in the specific regulatory relation.

Decision categories

How the project separated intermediated, direct and uncertain relations

Intermediated relation

R - I - T is substantively present. The intermediary performs a regulatory function connecting regulator and target, or provides regulator-facing regulatory input embedded in the regime.

Uncertain relation

Text suggests a possible relation, but role, direction, function or evidence is insufficient for confident positive coding.

Direct relation

R acts directly on T. A mechanism may exist, but no third actor performs an intermediary function.

Excluded / not supported

The text contains a relevant word or actor, but no regulatory relation can be reconstructed from the evidence.

This coding design protects the dataset from overcoding - the most tempting sin in this kind of exercise.

What the theory prevented us from doing

The main methodological guardrails

AVOID

- ✗ Treating “Commission”, “authority”, “operator” or “verifier” as fixed roles.
- ✗ Equating lexical hits with regulatory relations.
- ✗ Selecting cases only because intermediary-like strings appeared.
- ✗ Classifying every reporting obligation as intermediation.
- ✗ Calling the benchmark a “gold standard” without full independent human coding.

INSTEAD

- ✓ Use actor-in-relation coding.
- ✓ Require action + object + legal effect + textual location.
- ✓ Define the population independently from the expected phenomenon.
- ✓ Separate direct reporting from third-party intermediation.
- ✓ Use “researcher-adjudicated reference benchmark”.

The dataset is stronger because it resists premature certainty.

How the final dataset is organized

A clean dataset with theoretical traceability and empirical auditability



WORKBOOK STRUCTURE

ACT_SUMMARY, ACTOR_ROLE_MAP, INTERMEDIARY_MAP and RELATION_EVIDENCE preserve the path from theory to observable textual proof.

The file sent to David is intentionally clean: no internal model labels, no hidden adjudication notes, only final research variables.

Key references and documents studied

Works used to build the conceptual and operational architecture

1. Majone, G. (1994). The rise of the regulatory state in Europe.
2. Levi-Faur, D. (2005). The global diffusion of regulatory capitalism.
3. Levi-Faur, D. (2011; 2012; 2013). Regulatory governance; Big Governance; the regulatory state.
4. Levi-Faur, D. & Starobin, S. M. (2014). Transnational politics and policy: from two-way to three-way interactions.
5. Abbott, K. W., Levi-Faur, D. & Snidal, D. (2017). Theorizing regulatory intermediaries: the RIT model.
6. Abbott, K. W., Levi-Faur, D. & Snidal, D. (2017). Enriching the RIT framework.
7. Loconto; Kruck; Maggetti et al.; Jordana; Marx & Wouters; Kourula et al.; Mehrpouya & Samiolo; Brès, Mena & Salles-Djelic - empirical extensions on assurance, rating, certification, standards and intermediary roles.
8. Levi-Faur, D. Can Intermediaries Save Liberal Governance? Toward Effective and Legitimate Regulatory Intermediation. Research proposal / project material.
9. Medzini, R. & Levi-Faur, D. Why the DSA Monitors and the AI Act Assures? Enhanced self-regulation in digital governance. Working material.
10. EU acts: Regulation (EU) 2021/1119; Regulation (EU) 2023/956; Regulation (EU) 2023/1115.

Project note: the internal project synthesis was used as methodological memory, not as empirical ground truth.